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Case Number: 24PSCV02015 Hearing Date: June 25, 2026 Dept: 6

CASE

NAME: Daniel

Romero Jr. v. Vilma G. Romero, et al.

Plaintiff

Daniel Romero Jr.'s Motion to Confirm Sale and to Approve Referee's Report

TENTATIVE

RULING

The Court GRANTS Plaintiff Daniel Romero Jr.'s Motion to Confirm Sale and to Approve Referee's Report. The Court approves the referee's report and confirms that the property located at 1710 McKinley Avenue, Pomona, California 91767, bearing Los Angeles County Assessor Parcel Number 8322-025-22 should be sold by private sale to Juan Carlos Obregon Zamudio. The Court directs the referee to deposit the net sale proceeds with the Court within 20 calendar days' completion of the sale. The Court will set a further hearing for the distribution of the sale proceeds at the hearing on this motion.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is an action for partition of real property. On June 24, 2024, plaintiff Daniel G. Romero Jr. (Plaintiff) filed this action against defendants Vilma G. Romero, individually, and as trustee of the Vilma Gladiz Romero Trust dated May 11, 2020 (Vilma), Mortgage Electronic Registration Systems, Inc.

(MERS), and Does 1 through 10, alleging the sole cause of action for partition.

On August 20, 2024, Vilma answered the complaint. On September 25, 2024, Vilma filed a First Amended Answer (the "Amended Answer").

Following a non-jury trial on January 12, 13, and 14, 2026, the Court found Plaintiff owns a 1/3 interest in the subject property and that Defendant Vilma owns a 2/3 interest in the subject property. The Court further found Plaintiff was entitled to a partition by sale and ordered the property sold. On January 29, 2026, the Court entered an interlocutory judgment. On February 25, 2026, the Court entered an amended interlocutory judgment.

On February 13, 2026, Plaintiff moved to confirm the sale and to approve referee's report. On April 16, 2026, the Court granted Plaintiff's ex parte application to shorten the time for hearing on this motion to April 28, 2026. The Court ordered that any opposition was due by April 22, 2026, and that any reply was due by noon on April 24, 2026. On April 28, 2026, the Court continued the hearing to June 11, 2026, and ordered Plaintiff to serve a notice of sale fully compliant with Code of Civil Procedure sections 701.540 and 873.640. The Court further ordered Plaintiff to provide a supplemental declaration setting forth the costs of partition to be deducted from the sale price, if any. Plaintiff did not provide the supplemental declaration.

Following the initial hearing on June 11, 2026, the Court continued the hearing on the motion and directed Plaintiff to submit a supplemental declaration by June 18, 2026. On June 18, 2026, Plaintiff submitted the supplemental declaration and a supplemental memorandum in support of the motion. No opposition has been filed.

LEGAL

STANDARD

(a)

A purchaser, the referee, or any party may move the court to confirm or set aside the sale.

(b)

The moving party shall give not less than 10 days' notice of motion to:

(1) The purchaser if the purchaser is not the moving party; and

(2) All other parties who have appeared in the action.

(Code Civ.
Proc., § 873.720.)

(a)

At the hearing, the court shall examine the report and witnesses in relation to the report.

(b)

The court may confirm the sale notwithstanding a variance from the prescribed terms of sale if to do so will be beneficial to the parties and will not result in substantial prejudice to persons interested in the sale.

(c)

The court may vacate the sale and direct that a new sale be made if it determines any of the following:

(1)

The proceedings were unfair or notice of sale was not properly given. If there is no finding at the hearing of unfairness or improper notice, the sale may thereafter not be attacked on such grounds.

(2) The sale price is disproportionate to the value of the property.

(3)

It appears that a new sale will yield a sum that exceeds the sale price by at least 10 percent on the first ten thousand dollars (\$10,000) and 5 percent on the amount in excess thereof, determined after a reasonable allowance for the expenses of a new sale."

(Code Civ.
Proc., § 873.730.)

PRELIMINARY
ISSUES

Plaintiff's

notice of motion, amended notice of motion, and notice of continuation contain inaccurate information regarding the Los Angeles County Superior Court's tentative ruling system, including citation to a non-existent local rule, among other inaccuracies. The Court again admonishes Plaintiff's counsel to not provide this information in its motion notices going forward. If this continues, the Court may set an order to show cause re sanctions and other disciplinary measures.

DISCUSSION

Plaintiff moves the Court to approve the sale of the subject property for \$630,000.00. Plaintiff indicates that the property has two liens of record in favor of Mortgage Electronic Registration Systems, Inc. (MERS) and Plaintiff's counsel's firm, but only the lien in favor of MERS will be paid through the escrow proceeds. Plaintiff indicates that the court-appointed referee, Laura Vazquez (Vazquez), recommends the property be sold by private sale through standard commercially available methods rather than public auction because it is likely to result in the highest possible price, which will be more beneficial to the parties. Plaintiff indicates Vazquez also recommends selling the property to the highest cumulative bidder and to sell the property as is.

Vazquez's declaration indicates having marketed the property on MLS on April 1, 2026, with a listing price of \$599,000.00, and that on April 7, 2026, Juan Carlos Obregon Zamudio submitted an offer to purchase the property for \$630,000.00. Vazquez indicates that the sale will be conducted in a fair manner and in accordance with the terms of the sale, and that a confirmation of the sale will be beneficial to the parties and will not result in substantial prejudice to persons interested in the sale. Vazquez indicates that \$630,000.00 is a fair and adequate price for the property, it is proportionate to the value of the property, and that Vazquez has no reason to believe that a new sale will yield a sum that exceeds the sale price by ten percent on the first \$10,000.00 and five percent on any amount in excess thereof. Vazquez also indicates that the opening and closing of public and private ways, roads, streets, and easements is unnecessary. (Vazquez Decl., ¶¶ 8-13.)

In Plaintiff's supplemental memorandum in support of the motion, Plaintiff argues that no prejudice will result from the sale because the parties now have agreed to sell the subject property to this buyer. Plaintiff

contends prejudice may result from the denial of the sale because neither party has paid the mortgage since Vilma vacated the subject property. Plaintiff then contends the sale substantially complied with the law and cites the case of *Cummings v. Dessel* (2017) 13 Cal.App.5th 589 (*Cummings*) for the proposition that the notice of sale defects in this case were harmless. Plaintiff contends Vazquez posted a "FOR SALE" sign on the physical property with her contact information, which gave notice to the public of the sale. Plaintiff also contends Vilma was given proper notice of all court proceedings. Plaintiff contends a buyer has been identified, the price has been agreed upon, and all parties consent to the sale.

The Court still finds the proposed sale price of \$630,000.00 to be fair and reasonable, and that the report is largely adequate. The Court also finds that Vazquez's supplemental declaration provides a breakdown of the partition costs to be deducted from the sale proceeds. (See Vazquez Suppl. Decl., ¶¶ 8-18; Code Civ. Proc., § 874.010.)

Plaintiff still has not served a notice of sale by mail and posting, or otherwise complied with Code of Civil Procedure section 701.540. Posting a "FOR SALE" sign on the subject property does not satisfy the posting requirement. (See Vazquez Suppl. Decl., ¶¶ 4-5.) Notice of sale by posting requires the notice to be posted "in the following places: (1) One public place in the city in which the interest in the real property is to be sold if it is to be sold in a city or, if not to be sold in a city, one public place in the county in which the interest in the real property is to be sold. (2) A conspicuous place on the real property." (Code Civ. Proc., § 701.540, subd. (d).) It also appears that Plaintiff is required to provide notice by publication 20 days before the sale and mail each lienholder the notice of sale 20 days before the date of sale. (*Id.*, § 701.540, subds. (g)-(h).)

Nevertheless, the Court of Appeal in *Cummings* affirmed the trial court's judgment notwithstanding the lack of proper notice of sale by publication or by posting per Code of Civil Procedure section 701.540. (*Cummings*, *supra*, 13 Cal.App.5th at pp. 601-602.) The Court here similarly finds that the failure to provide notice of sale fully in compliance with Code of Civil Procedure section 701.540 is harmless, as there is no evidence of prejudice to the parties. Vazquez did at least post a "FOR SALE" sign on the property and provided an MLS listing. (Vazquez Decl., ¶¶ 4-5, Exs. 1-2.) Moreover, the parties otherwise appear to agree on the sale price. Throughout

the proceedings in connection with this motion, Vilma has not once opposed the motion or otherwise indicated that the sale price is inadequate. (See D.I. Chadbourne, Inc. v. Superior Court (1964) 60 Cal.2d 723, 728, fn. 4 [where nonmoving party fails to oppose a ground for a motion, "it is assumed that [nonmoving party] concedes" that ground].)

Furthermore, Code of Civil Procedure section 701.560, subdivision (a), provides that, "[f]ailure to give notice of sale as required by this article does not invalidate the sale." (Code Civ. Proc., § 701.560, subd. (a).) Code of Civil Procedure section 873.730, subdivision (b), also provides that, "[t]he court may confirm the sale notwithstanding a variance from the prescribed terms of sale if to do so will be beneficial to the parties and will not result in substantial prejudice to persons interested in the sale." (Code Civ. Proc., § 873.730, subd. (b).)

Based on the foregoing, the Court GRANTS the motion.

CONCLUSION

The Court GRANTS Plaintiff Daniel Romero Jr.'s Motion to Confirm Sale and to Approve Referee's Report. The Court approves the referee's report and confirms that the property located at 1710 McKinley Avenue, Pomona, California 91767, bearing Los Angeles County Assessor Parcel Number 8322-025-22 should be sold by private sale to Juan Carlos Obregon Zamudio. The Court directs the referee to deposit the net sale proceeds with the Court within 20 calendar days' completion of the sale. The Court will set a further hearing for the distribution of the sale proceeds at the hearing on this motion.

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